

attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

Further, even assuming that the statement of the process server reflecting personal service on the resident of the address is false, the code does not require this. The leaving of the documents in the *presence* of a competent adult of the household suffices. It is worth noting that while Defendant writes in his declaration that the documents were left on the curb, he does not dispute the account of the process server that the third-party adult of the household threw them.

Finally, it is worth noting that Defendant does not actually dispute that he actually received the process documents.

For all these reasons, this court finds, by a preponderance of the evidence, that valid service of process occurred through substitute service.

Next, the cardmember agreement is a contract between the parties, which explicitly requires the party electing arbitration to select an arbitrator. The only reasonable inference from this language is that the burden rests with the electing party to begin the arbitration process by selecting an arbitrator.

Disposition

Defendant's Motion to Quash is Denied.

Defendant's Motion to Compel Arbitration is granted. Court proceedings will be stayed pending arbitration.

Defendant to begin the arbitration process by selecting and contacting the arbitrator, and to follow other steps as reflected in the Cardmember Agreement.

Further CMC will be 12/2/26, 8:30am.

Court to file Order.

Court to provide notice of CMC.

15. 9:00 AM CASE NUMBER: L25-14143
CASE NAME: JPMORGAN CHASE BANK N.A. VS. ALEX GORBACHEVSKIY
*MOTION/PETITION TO COMPEL ARBITRATION TO COMPEL ARBITRATION AND MOTION TO
QUASH SERVICE OF SUMMONS
FILED BY: GORBACHEVSKIY, ALEX
TENTATIVE RULING:
NEEDS NEW DATE

Defendant filed a Motion on 3/16/26, to both Quash the Summons (Motion to Quash), arguing invalid service, as well as to Compel Arbitration (Arbitration Motion). Defendant also filed a Declaration, a Memorandum, and an Exhibit.

Copies of these documents were timely served on Plaintiff.

Plaintiff filed an opposition.

Background

The proof of service of process, filed on 1/26/26, and of which the court takes judicial notice, reflects that a registered process service served the process documents on a female adult who identified herself as a resident of the 687 Dolphin Drive address. Apparently, this adult then took receipt of the documents, claimed that either she or Defendant was not a resident, and then threw the documents to the ground.

The proof of service also reflects multiple, prior attempts of service at this address, and that the process documents were subsequently mailed to the address.

Defendant specifically claims that substitute service in this matter is invalid because the process papers were left outside on the curb of the residence. While Defendant contends he was not present during this event, he does appear to concede that a resident of the address was in fact present. He also does not appear to dispute that he actually received the process documents.

The Plaintiff, in their opposition, concedes that litigation should be suspended and that arbitration should begin. The only dispute that remains on this particular issue is over which party should trigger the arbitration process. Defendant claims that that burden rests with Plaintiff.

The language of the cardmember agreement, provided in Defendant's Exhibit A, includes the following language:

"Under this agreement to arbitrate, the party filing a Claim must select either Judicial Arbitration and Mediation Services ('JAMS') or the American Arbitration Association ("AAA") as the arbitration administrator." (P. 10, Exhibit A.)

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, “[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service.” *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Evidence Code Section 647*.

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant’s “dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address.” *Id.*

These provisions are to be liberally construed if actual notice has been received by the defendant. *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App. 4th 1387, 1392 (substitute service found where gate guard to a home was given authority to control access to appellants’ home; the gate guard’s relationship with appellants made it more likely than not that he would deliver process to appellants).

The test of whether substitute service is valid is whether the service is “reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard ... [in order that] the traditional notions of fair play and substantial justice implicit in due process are satisfied.” *Id.*, quoting *Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1416.

There are prerequisites for substitute service. The plaintiff must first make a good faith effort to personally serve the defendant. “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “reasonable diligence.”” *Rodriguez v. Cho* (2015) 236 CA4th 742, 750, quoting *American Express Centurion Bank v. Zara* (2011) 199 CA4th 383, 389.

In the instant matter, the court finds that Plaintiff exercised reasonable diligence in attempting to personally serve Defendant, and that Plaintiff also mailed a copy of the process documents to Defendant after the apparent substitute service.

Further, even assuming that the statement of the process server reflecting personal service on the resident of the address is false, the code does not require this. The leaving of the documents in the *presence* of a competent adult of the household suffices. It is worth noting that while Defendant writes in his declaration that the documents were left on the curb, he does not dispute the account of the process server that the third-party adult of the household threw them.

Finally, it is worth noting that Defendant does not actually dispute that he actually

received the process documents.

For all these reasons, this court finds, by a preponderance of the evidence, that valid service of process occurred through substitute service.

Next, the cardmember agreement is a contract between the parties, which explicitly requires the party electing arbitration to select an arbitrator. The only reasonable inference from this language is that the burden rests with the electing party to begin the arbitration process by selecting an arbitrator.

Disposition

Defendant's Motion to Quash is Denied.

Defendant's Motion to Compel Arbitration is granted. Court proceedings will be stayed pending arbitration.

Defendant to begin the arbitration process by selecting and contacting the arbitrator, and to follow other steps as reflected in the Cardmember Agreement.

Further CMC will be 12/2/26, 8:30am.

Court to file Order.

Court to provide notice of CMC.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: MS26-0392
CASE NAME: TILDEN - OAKMONT WEST LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS.
JACQUELINE GALLARDO
JURY TRIAL
FILED BY: GALLARDO, JACQUELINE
TENTATIVE RULING: